

		Defendants' requests for judicial notice are denied as immaterial to the disposition of this motion and because Defendants failed to provide the Court with copies of the subject documents. The Court notes that Plaintiff made several informal requests for judicial notice in the body of her briefs. These requests do not comply with CRC 3.1113(I) and are denied. <i>Defendants to give notice.</i>
112	Alpine Equipment Funding, Inc. vs. Guerra, 23-01328771	Plaintiff/Judgment Creditor, Alpine Equipment Funding, Inc. ("Judgment Creditor"), moves for an order (1) authorizing the Los Angeles County Sheriff to enter private property located at 6409 Planada Avenue, Los Angeles, California, for the limited purpose of levying identified vehicles owned by the Judgment Debtor pursuant to Code of Civil Procedure section 699.030; and (2) authorizing Judgment Creditor, while the Sheriff is executing the levy, to repossess equipment owned by Judgment Creditor and wrongfully retained by the Judgment Debtor, pursuant to Code of Civil Procedure section 187 and applicable commercial law. Judgment Creditor asserts that it seeks a narrowly tailored order authorizing entry onto private property to enforce a valid judgment that has gone unsatisfied despite extensive post judgment enforcement efforts. Judgment Creditor provides that on January 12, 2024, the Court entered a default judgment in favor of Judgment Creditor against Judgment Debtor Mario Guerra, Jr. ("Judgment Debtor") in the amount of \$140,356.85, and that Judgment Debtor has paid nothing towards satisfaction of the judgment and has refused to participate in any post-judgment proceedings. Judgment Creditor contends that it has identified non-exempt assets belonging to Judgment Debtor, including four vehicles titled in his name, which are regularly kept at or around his residence and frequently stored behind a locked six-foot fence, and that Judgment Creditor has probable cause to believe that Judgment Debtor continues to possess specialized equipment owned by Judgment Creditor and leased to Judgment Debtor under equipment finance lease agreements that are in default—namely, the Dancutter System and Perma-Liner pipelining systems (the "Equipment"). Judgment Creditor asserts that because the vehicles and equipment are concealed within a private area inaccessible to the levying officer, Judgment Creditor seeks an order under Code of Civil Procedure section 699.030 authorizing the Sheriff to enter the premises for the limited purpose of levying the identified vehicles as well as seeks authorization under Code of Civil Procedure section 187 to repossess its own equipment while the Sheriff is lawfully present executing the levy. Code of Civil Procedure section 699.030 provides, in part:

"If personal property sought to be levied upon is located in a private place of the judgment debtor:
[¶.]

"(b) The judgment creditor may apply to the court ex parte, or on noticed motion if the court so directs or a court rule so requires, for an order directing the levying officer to seize the property in the private place. The application may be made whether or not a writ has been issued and whether or not demand has been made pursuant to subdivision (a). The application for the order shall describe with particularity both the property sought to be levied upon, and the place where it is to be found, according to the best knowledge, information, and belief of the judgment creditor. The court may not issue the order unless the judgment creditor establishes that there is probable cause to believe that property sought to be levied upon is located in the place described. The levying officer making the levy, at the time delivery of the property pursuant to the order is demanded, shall announce his or her identity, purpose, and authority. If the property is not voluntarily delivered, the levying officer may cause the building or enclosure where the property is believed to be located to be broken open in such manner as the levying officer reasonably believes will cause the least damage, but if the levying officer reasonably believes that entry and seizure of the property will involve a substantial risk of death or serious bodily harm to any person, the levying officer shall refrain from entering and shall promptly make a return to the court setting forth the reasons for believing that the risk exists. In such a case, the court shall make such orders as may be appropriate."

(Code Civ. Proc. § 699.030(b).)

The standard of probable cause has been discussed in the context Fourth Amendment, made applicable to the States by the Fourteenth Amendment, as to the warrantless arrest of an individual in a public place for felony, or misdemeanor committed in the officer's presence. (*Maryland v. Pringle* (2003) 540 U.S. 366, 370.) " '[P]robable cause is a fluid concept—turning on the assessment of probabilities in particular factual contexts—not readily, or even usefully, reduced to a neat set of legal rules.' [Citation.] (*Id.* at pp. 370-371.) "The probable-cause standard is incapable of precise definition or quantification into percentages because it deals with probabilities and depends on the totality of the circumstances. [Citation.]" (*Id.* at p. 371.) "We have stated, however, that '[t]he substance of all the definitions of probable cause is a reasonable ground for belief of guilt,' *ibid.* (internal quotation marks and citations omitted), and that the belief of guilt must be particularized with respect to the person to be searched or seized, *Ybarra v. Illinois*, 444 U.S. 85, 91, 100 S.Ct. 338, 62 L.Ed.2d 238 (1979)." (*Ibid.*)

"Except as otherwise provided by law, all property of the judgment debtor is subject to enforcement of a money judgment." (Code Civ. Proc. § 695.010(a).)

Since obtaining the judgment, Judgment Creditor has made multiple attempts to serve Judgment Debtor, and to communicate with Judgment Debtor to settle this matter, arrange payment terms, or to retrieve the Equipment, but Judgment Debtor has never responded to a single letter, email, or phone call. (Declaration of Dana L. Halle, ¶¶ 2-4.)

Judgment Creditor provides that it has identified four vehicles titled in Judgment Debtor's name that it contends is subject to levy, which includes a white 2021 Ford Truck with California license plate 84755F3, a green 1972 Ford truck with California license plate PURAGRA, a white 2017 Isuzu truck with California license plate 95559M2, and a 2005 US Jet trailer with California license plate 4FM1497. (Declaration of Kellie R. Anguiano ("Anguiano Decl."), ¶¶ 2-6, Ex. E.)

Based on the foregoing, Judgment Creditor has described with particularity four vehicles titled in Judgment Debtor's name which it seeks to levy.

Judgment Creditor also provides that the white 2021 Ford Truck, the green 1972 Ford truck, and the white 2017 Isuzu truck have been observed at or immediately adjacent to or near the Judgment Debtor's residence based on two visits to the residence. (Declaration of James Hilbert ("Hilbert Decl."), ¶¶ 7-9, Exs. F-H.) Specifically, James Hilbert, a 50% owner and an officer of Judgment Creditor personally visited Judgment Creditor's residence located at 6409 Planada Avenue, Los Angeles, California ("Residence") on two occasions: May 21, 2025, at approximately 6:15 a.m. and October 30, 2025, at approximately 7:20 a.m. ("Residence Visits"). (Hilbert Decl., ¶¶ 1, 7.)

Mr. Hilbert provides that there is a six-foot fence surrounding the Residence, and from different vantage points, he could see over the gate and portions of the fence, and observed a white 2021 Ford truck during the Residence Visits, California license plate number 84755F3. (Hilbert Decl., ¶ 7, Ex. F.) The 2021 white Ford truck has VIN 1FD0W4GT6MEC15120, is registered to Judgment Debtor, and there appears to be no liens on this vehicle. (Anguiano Decl., ¶ 3, Ex. E.) Judgment Creditor has established that there is probable cause to believe, i.e., reasonable ground to believe, that the 2021 white Ford truck with California license plate number 84755F3 is located on the Residence property.

Mr. Hilbert also states that during the Residence Visits, he observed a 1972 Ford truck parked on the street immediately

		adjacent to Judgment Debtor's Residence, bearing California license plate number PURAGRA. (Hilbert Decl., ¶ 8, Ex. G.) The 1972 green Ford truck has VIN F10GKP84055, is registered to Judgment Debtor, and there appears to be no liens on this vehicle. (Anguiano Decl., ¶ 4, Ex. E.) This evidence does establish probable cause that the 1972 green Ford truck is "in the private place", i.e., at or on the Residence property. Instead, the evidence submitted supports only that this vehicle was seen adjacent to the Residence property, on what appears to be public property. Mr. Hilbert additionally states that during the Residence Visits, he observed a white 2017 Isuzu truck parked on the street immediately adjacent to Judgment Debtor's Isuzu truck in or around his Residence. (Hilbert Decl., ¶ 9, Ex. H.) The 2017 white Isuzu truck has VIN 54DB4W1B8HS803179, is registered to Judgment Debtor, and the vehicle has a lien with Ally Financial. (Anguiano Decl., ¶ 5, Ex. E.) As with the 1972 green Ford truck, this evidence does establish probable cause that the 2017 white Isuzu truck is "in the private place", i.e., at or on the Residence property. Instead, the evidence submitted supports only that this vehicle was seen adjacent to the Residence property, on what appears to be public property. Lastly, Mr. Hilbert states that "Creditor has probable cause to believe Debtor maintains the Jetter [2005 US Jet trailer] at Debtor's House, sometimes behind the six-foot fence around Debtor's Residence. (Hilbert Decl., ¶ 10, Ex. I.) This statement does not establish probable cause that the 2005 US Jet trailer is located at the Residence. Based on the foregoing, the Court DENIES the requested order to authorize the Los Angeles County Sheriff to enter the Residence to levy the 1972 green Ford truck, the 2017 white Isuzu truck, and the 2005 US Jet trailer. "The court may not issue the order unless the judgment creditor establishes that there is probable cause to believe that property sought to be levied upon is located in the place described." (Code Civ. Proc. § 699.030(b).) The Court GRANTS the requested order to authorize the Los Angeles County Sheriff to enter the Residence to levy the 2021 white Ford truck with California license plate number 84755F3 and VIN 1FD0W4GT6MEC15120. Judgment Creditor also seeks an order authorizing the Judgment Creditor, while the Sheriff is executing the levy, to repossess the Equipment. Judgment Creditor contends that they have probable cause to believe that Judgment Debtor continues to store the Equipment outside the Residence but behind the six-foot fence. They thus request authorization for Judgment Creditor's representative to enter the area inside
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	the six-foot fence to repossess the Equipment, solely for the limited purpose of identifying and retrieving Judgment Creditor's property while the Sheriff is present and executing the levy. Judgment Creditor has not established probable cause that the Equipment is located in the Residence or on the Residence property, namely, outside the Residence but behind the six-foot fence. Mr. Hilbert expressly states that he could not see the Equipment on his Residence Visits. (Hilbert Decl., ¶ 7.) Thus, Judgment Creditor fails to make the required showing for an order directing the Los Angeles County Sheriff to seize the Equipment in the private place, i.e., Judgment Debtor's Residence. The Court DENIES the motion as to the request for an order authorizing a representative of Judgment Creditor to be repossess the Equipment while the Los Angeles County Sheriff is executing any levy. <i>Judgment Creditor to give notice.</i>
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